

The African Union Convention on Cyber Security and Personal Data Protection also known as the Malabo Convention is a 2014 legal framework adopted by the African Union (AU) to address cybercrime and data protection in Africa.

Contents

The Malabo Convention is divided into three main chapters:

Electronic transactions chapter

The Convention outlines unified guidelines and regulations for different aspects of e-commerce, such as online advertising, the legal recognition of electronic contracts, and securing electronic payment systems.

Data protection chapter

The Malabo Convention requires all member states to develop a comprehensive data protection framework. As outlined in Article 8(1), it

aimed at strengthening fundamental rights and public freedoms, particularly the protection of physical data, and to punish any violation of privacy without prejudice to the principle of the free flow of information.

Also, Articles 11, 13, and 16 to 19 further specify that this framework must be overseen by a national data protection authority (DPA), which should operate independently and be responsible for ensuring that personal data processing is properly regulated. The national framework must reflect essential data protection standards—such as obtaining consent, ensuring legality, maintaining confidentiality, and promoting transparency—while also guaranteeing individuals specific rights over their personal information.

Cybersecurity and cybercrime chapter

The Malabo Convention criminalise different cyber activities and obliges each member state to create a national cybersecurity policy and strategy. It also calls for the formation of relevant institutions and mechanisms to detect and address cybersecurity threats, uphold key cybersecurity values, and foster international collaboration. Regarding cybercrime, the Convention urges states to enact national laws and regulations that criminalize “acts which affect the confidentiality, integrity, availability and survival of information and communication technology systems, the data they process, and the underlying network infrastructure.

History

The African Union introduced the convention in 2011 aimed at creating a trustworthy cybersecurity structure across the continent. Its objectives included regulating electronic transactions, safeguarding personal information, enhancing cybersecurity, encouraging e-governance, and addressing cybercrime. The adoption of the convention was postponed several times until 2014 when it was adopted at its 23 Ordinary Session at Malabo in Equatorial Guinea. However, it did not come into implementation because of the Article 36 that showed that the treaty will come to force upon the ratification of at least 15-member nation of the African Union.

Implementation

On 8 of June 2023, the Malabo Convention came to effect 30 days after the ratification of Mauritania as the 15 member nation to fulfilled the Article 36 of the Malabo Convention.

In Sudan

Sudan signed the Malabo Convention on 15 March 2023, during the African Union Summit in Addis Ababa. The convention was signed by the then-acting Minister of Telecommunications

and Digital Transformation, Adel Hassan Mohamed Al-Hussein, in the presence of officials from the AU Commission and Sudan's regulatory authority. However, the country is yet to ratify the convention

List of signatories and ratified countries

Below are the list of countries who have signed and ratified the African Union (AU) Convention on Cyber Security and Personal Data Protection

== References ==